

General Terms and Conditions for Business Customers

1. Company name and deliverable address / Your contract partner:

don't panic die Casemanufaktur GmbH
Kurt-A.-Körber-Chaussee 73
21033 Hamburg
Tel.: 040-7217692
Fax: 040-72410352
E-Mail: info@dont-panic.biz

managing Director: Oleg von Cube, Michael Benkmann

District Court/commercial register: Hamburg, HR B 65660

USt-IdNr. DE 812379704

WEEE-Reg.-Nr. DE29955230

2. Validity/General

2.1 The following General Terms and Conditions of Business shall apply unless otherwise agreed to all transactions with don't panic die case-manufaktur GmbH (hereinafter referred to as "don't panic" or "we/us/our") with entrepreneurs within the meaning of §14 of the German Civil Code (BGB), with legal entities established under public law, as well as public funds under public law within the meaning of §310(1) BGB. These terms do not apply, however, to purchase contracts which customers enter into via the ebay.de or amazon.de platforms, which are subject to the applicable terms and conditions set forth therein.

2.2 Entrepreneurs within the meaning of §14 BGB are natural or legal persons or partnerships having the capacity to enter into legal relationships relating to the exercise of their trade, business, or independent professional activities.

2.3 We do not recognise any differing or additional customer terms unless otherwise agreed in writing. Our terms continue to apply even if we provide goods or services to customers in the awareness of contrary or differing customer terms.

2.4 These terms also apply to all future deliveries, services, or offers, even if they are not separately agreed at that time.

2.5 All drawings, calculations, design proposals, samples, and other planning documents remain our property. All planning documents may not be disclosed to third parties without our express written consent. They must be returned upon request. The right to assert claims for damages caused by the breach of this non-disclosure agreement is reserved.

3. Offers, contract, prices

3.1 The goods as shown on our website <http://www.dont-panic.biz> are for information purposes only. Our offers are subject to change and non-binding unless we have expressly designated them as binding for a certain period.

3.2 When customers place an order, this constitutes a binding offer to enter into a contract with us. Unless otherwise agreed, we are entitled take up to 14 days after receipt to accept this offer. Acceptance may either be declared in writing or by delivering the goods to the customer. This establishes the contract between the customer and us. If you have chosen to pay for your order in advance, the contract will take effect once we receive payment confirmation from the payment service provider. We do not save the text of the contract. All contracts are exclusively in German.

3.3 The scope of delivery is as agreed by the parties and may be found in our written order confirmation.

3.4 The prices are shown in the offer made to the customer. The prices do not include the applicable statutory value-added tax. The prices also do not include packaging, shipping, or freight charges.

3.5 Samples and specimens are only approximations of the quality, dimensions, and colour of the goods and are not guaranteed. Guarantees require express agreement.

3.6 If the customer does not place an order with us, we expect to reimbursed for the services already rendered.

4. Delivery

4.1 Delivery periods commence from the date the order is confirmed, but are subject to correct and timely delivery by our suppliers. We are not liable for such delays caused by third parties. Delivery periods also do not start until any down-payment as agreed has been received in our bank account and also not before the customer provides the necessary documents, drawings, dimensions, permits, and approvals.

4.2 Shipping charges do not include insurance and are at the expense of the customer. If the customer wishes shipments to be insured, the customer must expressly request this and bear the associated expense. Packaging costs are also borne by the customer.

4.3 Partial deliveries are permitted if reasonable for the customer. The right to make changes to the design or shape resulting from improvements to technology or new requirements set by law is reserved, provided that the nature of the item is not significantly altered and the changes are reasonable for the customer.

4.4 Deliveries shall be made at the expense of the customer from our facility in Hamburg-Bergedorf. The risk is transferred to customer at the latest when the item is handed to or loaded by the shipper, carrier, or other third party designated to make the delivery to the customer. This also applies to partial deliveries are made or if we have agreed to provide additional services (e.g. shipping or installation). If the dispatch or handover is delayed as a result of a circumstance under the customer's control, the risk shall be transferred to the customer on the day on which the delivery item was ready for dispatch, provided we have notified you of the same.

4.5 If we have specified delivery periods or have accepted them as the basis for the customer's order, such deadlines may be extended due to delays caused by strikes or force majeure for the duration of the delay. The same applies if the customer fails to fulfil its obligations to cooperate.

4.6 The customer shall bear any and all costs associated with refusing to accept delivery as well as any resulting damages, in particular additional transportation costs as well as storage costs, if the grounds for this refusal was unfounded.

5. Payment terms

5.1 The agreed price and charges for additional services are due without further deduction, unless otherwise agreed in writing, within 15 days after the invoice has been issued. If payment is made within 8 days from the date of the invoice, we grant a 2% discount. If payment is not received after 15 days after receipt of the invoice, the customer is in default. We are then entitled to charge default interest. Credit notes are to be offset against the value of goods, before any discounts are applied. The discount is granted on the net value of the goods. The customer is entitled to a discount only if there are no open items on the account of the customer.

5.2 Cheques and bills of exchange shall be deemed paid only after they have cleared. Payment via bill of exchange requires our prior written agreement and are subject to the usual discount and collection charges imposed by banks. They are to be paid immediately in cash.

5.3 We are entitled charge default interest from the due date for customers who are merchants within the meaning of the BGB and from the day of default for customers who are not at a rate of 9 points above the base interest rate. The assertion of further damages remains unaffected.

5.4 We also reserve the right to fulfil orders only against pre-payment. If the customer is in default of payment or a cheque or bill of exchange has been declined, we reserve the right to make any further deliveries only on a pre-paid basis and to demand payment in cash or collateral for bills of exchange accepted. If we have to initiate legal proceedings to assert our claims, all outstanding accounts shall become immediately due even if an extended payment deadline had previously been granted. Any discounts granted will also be forfeited.

5.5 The customer only has the right to withhold payments or offset counterclaims insofar as its counterclaims are undisputed or court-ordered. The exclusion of the right to make offsets or retain payments does not affect the customer's claims arising from the contractual relationship with regard to the remedy of defects or costs for completion.

6. Notification of defects, rights of the customer in case of defects

Our liability for material defects is subject to the following terms; any claims for damages arising from defects are subject to the terms in §7 below.

6.1 The customer must check our deliveries and invoices without delay and report any defects within the meaning of §377 of the German Commercial Code (HGB) and / or errors in the invoice without delay.

6.2 In the case of timely, justified notice of defects found in the goods we have delivered, we are free to decide whether to remedy the defect or offer a replacement delivery. If we fail to provide remedy or a replacement within a reasonable period, the customer may reduce the invoice amount accordingly or withdraw from the contract.

6.3 Claims for material defects are forfeited 12 months after the risk has been transferred to the customer. This does not apply if longer periods apply per §438 (1)(2), §479 (1), or §634a (1)(2) BGB or in cases of injury to life, limb or health, intentional or grossly negligent breach of duty, the fraudulent concealment of a defect, or if the seller has made separate warranties otherwise. The legal provisions regarding the commencement, suspension and recommencement of limitation periods remain unaffected. If the buyer asserts claims for damages, such claims are subject to the statute of limitations for such claims.

6.4 Goods which we have replaced become our property.

6.5 We are not obliged to accept returns of goods that have been properly delivered. The customer shall bear the return shipping costs.

7. Liability, indemnity

7.1 We are only liable for damages to the goods themselves and hereby disclaim liability for any consequential damages. Further claims against us, regardless of the legal reason, are excluded, especially for indirect damages or loss of profit.

7.2 The disclaimer in the previous clause does not apply to damage caused by us or our agents with intent or out of our gross negligence; they also do not apply in cases of injury to body, health

or life, or in cases where we have guaranteed that the goods will have a certain characteristic. The foregoing disclaimer also does not apply to claims under the Product Liability Act. It also does not apply if we engage in the culpable violation of our essential contractual obligations. Such essential contractual obligations are those which enable the proper execution of the contract as agreed and which customers may customarily rely on. In these cases, however, our liability is limited to the foreseeable, typical damages for contracts of this kind.

7.3 If our liability has been excluded or limited, this also applies to the personal liability of our employees, workers, personnel, representatives, and agents.

7.4 The customer warrants that the plans, drawings, calculations and other documents submitted are not subject to rights held by third parties. The customer accepts liability for ensuring that the documents made available and their use does not breach any rights of third parties. If said third parties prohibit the manufacture and delivery of certain goods by invoking their proprietary rights, we are entitled to terminate any further activity with regard to the goods concerned. If the use of the documents, drawings, plans, etc. provided to us by the customer results in claims for damages or injunctive relief against us, the customer agrees to indemnify and hold don't panic and its legal representatives harmless with immediate effect and to cover the costs of responding to these claims both in and out of court. Our right to claim further damages for such cases is reserved.

8. Retention of title

8.1 We reserve ownership of the delivered goods until all of our outstanding claims are paid in full. If we allow customers to maintain an open account, this does not affect our retention of title. If liability in relation to a bill of exchange is incurred by us in connection with the payment of the purchase price, we retain title until the bill of exchange is honoured by the customer as drawee. In the event the customer is in default, we are entitled to repossess the goods to which we still hold title after issuing a reminder and notice rescinding our contractual relationship. The customer is obliged to surrender said goods.

8.2 If the buyer has processed the goods ordered from us to create another product, we automatically attain joint title to the new item representing the ratio of the value of the good ordered from us and the total value of the newly processed good at the time of processing. If goods to which we hold title are linked, mixed, or intermingled with other items as described in §§947, 948 BGB, we become co-owners of the newly mixed goods as stipulated therein. If the customer acquires sole ownership by linking, mixing, or intermingling goods, the customer hereby assigns us joint title to the mixed goods at a value representing the ratio of the value of the good ordered from us and the total value of the newly processed good at the time of processing. In such cases, the

customer agrees to store the items in which we retain ownership or joint ownership on our behalf as stipulated below.

8.3 If reserved goods are sold by the customer after processing or mixing with goods not belonging to us, the customer hereby assigns to us the proportional share in the proceeds of that sale together with all ancillary rights and priority (extended retention of title); we accept the assignment. The value of the reserved goods is the amount invoiced plus 10% as collateral, but which will not be asserted as long as the rights of third parties contravene. If the goods resold are co-owned by us, the proceeds from that sale shall be proportionally assigned to us at an amount corresponding to the seller's share in the co-ownership. §8 (1)(2) herein shall apply mutatis mutandis to the extended retention of title; the advance assignment pursuant to §8 (3)(1) and (3)(3) also applies.

8.4 The customer is entitled and authorised to resell, use, or install the goods for which we retain title only in the course of its customary trade or business and only if the receivables from the same are assigned to us as stipulated in §8 (3) above. The customer is not otherwise entitled to dispose of the goods to which we retain title and, in particular, may not use them as collateral or otherwise transfer ownership.

8.5 We here give the customer the revocable authorisation to collect the receivables assigned to us per §8 (3) herein on our behalf. We will not undertake the collections to which we are entitled for as long as the customer complies with its payment obligations to us and third parties. At our request, the customer must tell those owing the receivables thus assigned herein of our claim and notify them of the assignment. We are also authorised to notify them ourselves.

8.6 The customer must immediately notify us of any third party attempts to execute claims against the goods to which we retain title or the receivables assigned to us and provide us with the documents necessary to defend our rights.

8.7 If the customer stops making payments or applies to open insolvency proceedings, we hereby prohibit the resale, use, or processing of the goods to which we hold title and hereby revokes any authorisation given the customer to collect the accounts assigned herein as collateral. This also applies if a cheque or bill of exchange is declined.

8.8 If the value of the collateral granted exceeds the claims by more than 20%, then we are free to reassign or release the title at our discretion. Once all our claims have been paid, ownership of the reserved goods and the assigned claims are transferred to the customer.

9. Price adjustments

Price adjustments are permissible if more than four months pass between the contract and the agreed delivery date. If thereafter and until delivery completion there is an increase in delivery wages, material costs or market-consistent purchase prices, we are entitled to increase the price appropriately in accordance with these cost increases. In the case that wages or material costs are drop, the price will be reduced accordingly.

10. Final provisions

10.1 The place of performance for delivery and payments with merchants, legal entities under public law, or public special funds is our registered office in Hamburg-Bergedorf.

10.2 German law applies with the exclusion of the UN Sales Convention.

10.3 In business transactions with merchant, legal entities under public law or special funds under public law, the place of jurisdiction shall be Hamburg-Bergedorf. This applies also to cheques and bills of exchange.

10.4 The contract language is German.

10.5 Should one or more provisions of these terms and conditions be or become invalid, the validity of the remaining provisions shall remain unaffected. In place of the ineffective or invalid provision, the parties will agree on one that comes closest in terms of its effect to the purpose of the original provision.

Updated September 2017